

Helix Health

BAA Inventory and Adequacy Assessment (45 CFR 164.504(e))

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FY 2026 BAA Review

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Helix Health BAA Inventory + Adequacy Assessment

Document Type: Business Associate Agreement Inventory + §164.504(e) Satisfactory Assurances Assessment
Authority: 45 CFR §164.502(e) - Disclosure to Business Associates + §164.504(e) - Implementation Specification (Required) for Satisfactory Assurances + §164.308(b)(1) - Business Associate Contracts **Engagement:** Helix Health Inc.
Assessment Date: 2026-06-27 **Review Cadence:** Quarterly

1. Purpose

A BAA is the legal mechanism by which a Covered Entity (or higher-tier Business Associate) obtains "satisfactory assurances" that a downstream Business Associate will appropriately safeguard Protected Health Information (PHI). Under §164.504(e), this assurance is REQUIRED before any PHI may be disclosed to a Business Associate.

This document inventories every BAA-covered vendor in Helix's environment, classifies them by criticality, and assesses the adequacy of the BAA itself. It is a primary OCR audit artifact.

2. BAA Inventory (10 Vendors)

VENDOR	TIER	CRITICALITY	PHI HANDLED	BAA STATUS	BAA ADEQUATE	SOC 2 TYPE 2	LAST REVIEWED	REVIEW CADENCE
Amazon Web Services	1	Critical	All categories (infrastructure)	Executed	Adequate	On file (latest 2026-Q1)	2026-04-15	Quarterly
Datadog	1	Critical	Application logs (may contain PHI fields)	Executed	Adequate	On file (latest 2026-Q1)	2026-04-15	Quarterly
	1	Critical		Executed	Adequate		2026-04-15	Quarterly

VENDOR	TIER	CRITICALITY	PHI HANDLED	BAA STATUS	BAA ADEQUATE	SOC 2 TYPE 2	LAST REVIEWED	REVIEW CADENCE
Auth0 (Okta CIC)			Authentication metadata + patient portal sessions			On file (latest 2026-Q1)		
Sumo Logic	1	Critical	Audit logs (may contain PHI metadata)	Executed	Adequate	On file (latest 2026-Q1)	2026-04-15	Quarterly
Cloudflare	2	Important	HTTP traffic (TLS-encrypted in transit)	Executed	Adequate	On file (latest 2026-Q1)	2026-04-15	Quarterly
Google Workspace	2	Important	Email + docs (no PHI expected, but flows possible)	Executed	Adequate	On file (latest 2026-Q1)	2026-04-15	Quarterly
GitHub Enterprise	2	Important	Source code (may include test data with PHI)	Executed	Adequate	On file (latest 2026-Q1)	2026-04-15	Quarterly
Stripe	2	Important	No cardholder data; payment metadata only	Executed	Adequate	On file (latest 2026-Q1)	2026-04-15	Quarterly
PagerDuty	3	Deferrable	Alerting metadata (no PHI expected)	Executed	Adequate	On file (latest 2026-Q1)	2026-04-15	Annual
Vanta	3	Deferrable	Compliance evidence (no PHI expected)	Executed	Adequate	On file (latest 2026-Q1)	2026-04-15	Annual

2.1 Tier Classification

Tier 1 - Critical: Any vendor whose failure would stop PHI processing, block authentication, or break cloud infrastructure. Reviewed quarterly.

Tier 2 - Important: Tools that support operations but have workable alternatives, OR tools that transit PHI in some form. Reviewed quarterly.

Tier 3 - Deferrable: Tools with no expected PHI exposure but BAA executed for defense in depth. Reviewed annually.

2.2 Critical Gap: Contract Records

CISO Assistant currently shows 0 contracts loaded despite 10 vendors with BAA coverage. This is a real-world data hygiene gap that an OCR auditor would flag. In a real engagement, the immediate remediation is:

1. Pull executed BAA PDFs from Legal repository
2. Upload to CISO Assistant `/contracts/` endpoint with metadata:
 - Vendor name (linked to entity)
 - BAA execution date
 - BAA renewal date
 - Linked perimeters (which systems does this BAA cover)
 - Linked policies (which Helix policies reference this BAA)
1. Set up automated renewal alerts (60 days before expiry)

This is **POA&M item POA&M-06** in the HIPAA Risk Analysis.

3. BAA Adequacy Checklist (per §164.504(e))

The HIPAA Privacy Rule does not prescribe specific BAA language, but OCR and HHS have established expected elements. This checklist validates every Helix BAA against the standard pattern:

REQUIRED ELEMENT	§164.504(E)(2)(I)-(III)	HELIX BAAS
Permitted uses and disclosures of PHI	Required	All 10 BAAs include permitted use clause with minimum-necessary
Prohibit further use or disclosure	Required	All 10 BAAs include use limitation
Safeguards to prevent misuse	Required	All 10 BAAs reference vendor SOC 2 Type 2 + security program
Reporting of unauthorized use	Required	All 10 BAAs require breach notification within 24-72 hours
Subcontractor obligations	Required	All 10 BAAs flow down obligations to subcontractors
Access to PHI by individuals	Required (subcontractor)	All 10 BAAs include individual right of access
Amendment rights		All 10 BAAs include amendment obligations

REQUIRED ELEMENT	§164.504(E)(2)(I)-(III)	HELIX BAAS
	Required (subcontractor)	
Accounting of disclosures	Required (subcontractor)	All 10 BAAs include accounting obligations
Return or destruction of PHI at termination	Required	All 10 BAAs include termination clause with 30-day return/ destruction
Authorization for breach notification	Required	All 10 BAAs authorize Helix to notify affected Covered Entities
Indemnification	Best practice	All 10 BAAs include indemnification clause (Helix indemnified by vendor)
Insurance requirement	Best practice	All 10 Tier 1 BAAs require \$5M+ cyber liability insurance
Term and termination	Best practice	All 10 BAAs have explicit term + termination for cause

BAA Adequacy Assessment: PASS. All 10 BAAs meet the standard pattern required for §164.504(e) satisfactory assurances.

4. Subcontractor BAA Chain

HIPAA requires that BAA obligations flow down to subcontractors (§164.504(e)(1)(ii)). Helix requires every Tier 1 vendor to flow down BAA obligations to their own subcontractors that touch PHI.

TIER 1 VENDOR	KNOWN SUBCONTRACTORS TOUCHING PHI	DOWNSTREAM BAAS VERIFIED
AWS	AWS Subprocessors (published list, ~40 entities)	Yes - AWS publishes BAA-aligned subprocessing terms
Datadog	AWS (US infrastructure)	Yes - AWS BAA covers
Auth0/Okta CIC	AWS (US infrastructure)	Yes - AWS BAA covers
Sumo Logic	AWS (US infrastructure)	Yes - AWS BAA covers
Cloudflare	Cloudflare edge nodes (global)	Yes - Cloudflare BAA covers edge processing

Subcontractor BAA Chain: Verified for all Tier 1 vendors. This is documented evidence for §164.504(e)(1)(ii) compliance.

5. BAA Renewal Calendar

VENDOR	BAA EXECUTION DATE	RENEWAL DATE	DAYS TO RENEWAL	ACTION REQUIRED
AWS	2019-03-15	2027-03-15	287 days	None - monitor quarterly

VENDOR	BAA EXECUTION DATE	RENEWAL DATE	DAYS TO RENEWAL	ACTION REQUIRED
Datadog	2020-06-01	2026-12-01	184 days	Initiate renewal Q3 2026
Auth0 (Okta CIC)	2021-09-10	2026-09-10	76 days	Initiate renewal immediately
Sumo Logic	2021-09-10	2026-09-10	76 days	Initiate renewal immediately
Cloudflare	2022-01-15	2027-01-15	232 days	None - monitor quarterly
Google Workspace	2019-08-20	2026-08-20	55 days	Initiate renewal immediately
GitHub Enterprise	2020-11-05	2026-11-05	157 days	Initiate renewal Q3 2026
Stripe	2021-04-12	2027-04-12	315 days	None - monitor quarterly
PagerDuty	2022-05-30	2027-05-30	363 days	None - monitor annually
Vanta	2023-02-14	2027-02-14	251 days	None - monitor annually

3 BAAs require immediate renewal initiation (Auth0, Sumo Logic, Google Workspace) within 60 days. None are currently expired, but the 60-day-out threshold triggers the renewal workflow per the BAA Policy.

6. Incident-Driven BAA Activation (Breach Scenarios)

Under §164.410, a Business Associate must notify the Covered Entity of any breach of unsecured PHI within 60 days. This section documents how the BAA chain activates during an incident.

6.1 Downstream Vendor Breach Scenario

If AWS reports a breach affecting Helix PHI:

- 0-24 hours:** AWS notifies Helix CISO + Legal per BAA notification clause
- 24-48 hours:** Helix CISO + Legal assess affected perimeters + PHI scope
- 48-72 hours:** Helix notifies affected Covered Entities per §164.410 + BAA
- Within 60 days:** Covered Entity notifies affected individuals per §164.404

6.2 Helix Breach Affecting Covered Entity

If Helix discovers an unauthorized disclosure of Covered Entity PHI:

- 0-24 hours:** Helix activates Breach Notification Playbook
- 24-72 hours:** Helix notifies affected Covered Entity per BAA + §164.410
- 60 days max:** Helix supports Covered Entity notification to affected individuals

6.3 Breach Notification Templates

This document references the **Breach Notification Playbook** (see `breach-notification-playbook-2026-06-27.md`) for:

- Notification letter templates (Covered Entity, individual, media)
- Notification timing (60-day rule + state-specific rules)
- OCR notification template (for breaches >500 individuals)
- Documentation checklist (what evidence to preserve)

7. BAA Risk Concentration Analysis

7.1 Single Point of Failure Analysis

SERVICE	VENDOR	FAILURE IMPACT	DR COVERAGE
Cloud infrastructure	AWS	Complete PHI processing halt	us-west-2 DR region
Authentication	Auth0 (Okta CIC)	Provider portal inaccessible	Multi-region Auth0 tenant
Audit logging	Datadog + Sumo Logic	Audit trail degraded if both fail	Independent vendors, dual-sink

7.2 Concentration Risk

AWS appears as the infrastructure for 4 of the 10 vendors (Datadog, Auth0, Sumo Logic, plus direct use). This creates concentration risk in the BAA chain: a single AWS incident affects 4 vendors simultaneously.

Mitigation: AWS publishes a current subprocessing list and BAA-aligned terms. The Helix CISO reviews this list quarterly. If AWS expands its subprocessing to include new entities that handle PHI differently, Helix reassesses.

8. What This Demonstrates

This BAA Inventory + Adequacy Assessment shows healthcare-specific vCISO work that does NOT appear in FinTech or banking engagements:

1. **§164.504(e) satisfactory assurances assessment.** Every BAA is checked against the 13-element standard pattern. OCR auditors specifically look for this.
2. **BAA renewal calendar with 60-day threshold trigger.** Real renewals require 60-90 days of negotiation. The calendar surfaces renewals before they expire.
3. **Subcontractor BAA chain verification.** §164.504(e)(1)(ii) requires flow-down. The chain must be documented.
4. **BAA-driven incident response.** Breach notification timing depends on BAA clauses, not just §164.410. The playbook chains off the BAA terms.
5. **Single point of failure + concentration analysis.** Vendor concentration risk is healthcare-specific because patient outcomes are at stake, not just business continuity.
6. **Critical data hygiene gap surfaced.** CISO Assistant shows 10 vendors with BAA coverage but 0 contracts loaded. This is the kind of finding OCR auditors discover during investigations and flag in their audit reports.

9. Review and Update Schedule

- Quarterly review of BAA inventory (Q3, Q4, Q1, Q2)
- Annual BAA adequacy assessment (full re-evaluation against §164.504(e) checklist)
- Material change trigger: any new BAA-covered vendor added

Owner: Legal + TPRM **Approver:** CISO + Compliance Committee